

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600527	LEGERTON vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Under Civil Code § 1794(d) (Song-Beverly), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) The parties settled at mediation. Both sides agree that the parties agreed that the court would resolve the issue of fees and costs.

Defendant argues the hourly rate proposed and time spent on this matter was unreasonable. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically, in exercising its discretion, the Court may consider all facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended is. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The hourly rate sought by counsel ranges from \$495 to \$745 an hour. (Declaration of Nicholas M. Dillavou, Exhibit 7.) The paralegals' hourly rates are \$250. "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc., supra*, 22 Cal.4th at 1095.) The rates sought appear high for Riverside County, especially considering the formulaic work required in a lemon law matter. The court reduces Nicolas Dillavou's rate from \$745 to \$550 an hour and Christine Morano's rate from \$495 to \$395. The amount sought for paralegals is also excessive. This rate is

reduced to \$150 an hour. This would reduce the \$17,748 sought in attorneys' fees to \$12,639.

Defendant also disputes the reasonableness of the amount of time spent on this lawsuit. This lawsuit was filed on 1/21/26. Plaintiff executed the settlement agreement on 5/22/26. (Declaration of Nicholas Dillavou, ¶ 4.) This is the only motion filed in this lawsuit. The complaint has not been amended. Due to this, the 38 hours spent on this matter is not reasonable.

Defendant argues the time billed to prepare the complaint is excessive because it is a form complaint. This argument is persuasive. Plaintiffs' name, the name of the dealer, when they bought the vehicle, and type of vehicle purchased are the only factual allegations that appear specific to Plaintiffs' case, the remaining allegations appear to be formulaic. Based on Exhibits B and C to Michael J. Gregg's Declaration, the complaint used in this matter has been used in other matters with only the matters discussed above changed. As such, the 1.3 billed by counsel in preparing the complaint is reduced by 1 hour (\$550). The .8 billed by paralegals to also draft and prepare the complaint is reduced by .6 (a reduction of \$90).

Defendant argues Plaintiffs' counsel billed for work that is not compensable because it is simply overhead costs that should not be passed on to Defendant or secretarial work. There does appear to be 7.1 hours billed that is secretarial in nature or pertain to the preparation of internal spreadsheets. These entries include billing for reviewing receipts, calendaring matters, reviewing the calendar, tracking or reviewing court portal/docket, creating internal spreadsheets (Plaintiff fails to establish that these were necessary for litigation and the updating of these spreadsheets continued long after this matter was settled), and organizing the file (because according to the biller it was a mess) (the applicable entries are 2/11/26, 3/9/26, 3/13/26, 3/13/26, 3/13/26, 4/8/26, 4/8/26, 4/8/26, 4/14/26, 4/15/26, 4/28/26, 5/2/26, 5/15/26, 6/17/26, 6/22/26, 6/24/26, 7/8/26, 7/8/26, 7/9/26, 7/13/26, 7/14/26, and 7/29/26). As such, the amount of time spent on this matter is reduced by 7.1 hours (\$1,065).

Defendant contends many of the billing entries should be reduced because it appears that Plaintiffs' counsel was not billing less than a .2 for work done. There are only two billing entries that are .1 entries. Many of the billing entries identified by Defendant have been addressed because they are secretarial in nature. Additionally, many of the entries do appear to be things that could be done within the billed period. As such, further reductions are not needed.

Defendant asserts the amount sought to prepare this motion (6 hours – Defendant contends 6.7 hours were spent on this motion, but the court only calculated 6 hours) and the anticipated 5 hours to wrap-up this motion are excessive. This motion is a standard attorney's fees motion for a lemon law matter. These motions are formulaic template work in nature. Due to this, the time billed is excessive. A reduction in time spent on this matter by 5.7 hours is appropriate (a reduction of \$2,855 (5 hours x \$550 and .7 hours at \$150)).

These reductions would reduce the total time spent on this matter to 23.6 hours and amount of attorney's fees of \$8,079.

Defendant argues a negative multiplier should be applied in this matter. A negative multiplier can be applied where appropriate. (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160.) The factors looked at in determining whether to apply a negative multiplier are the nature of the litigation, its difficulty of the case, the amount involved, the skills required to handle the case, the skills employed, the attention given, the outcome, and other circumstances in the case. (*Id.* at 160-161.) If the court finds that an attorney's work on a case is duplicative or excessive, the court does have discretion to apply a negative multiplier. (*Id.* at 161.) The reductions discussed above have taken care of any duplicative or excessive billing. As such, a negative multiplier is not warranted.

A "prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP §1032(b).) A prevailing party is "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (*Id.* at (a)(4).) Neither party disputes that Plaintiff is the prevailing party and entitled to costs.

The court grants the motion for fees in part, denied in part, and awards attorneys' fees in a reduced amount of \$8,079 and costs in the amount of \$593.08.